

Thuttagudala Mounika Nagalakshmi Devi vs Thutta Suresh Babu on 8 October, 2025

APHC010267012025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

WEDNESDAY, THE EIGHTH DAY OF OCTOBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 182/2025

Between:

1. THUTTA(GUDALA) MOUNIKA NAGALAKSHMI DEVI, W/O THUTTA
SURESH BABU D/O GUDALA SRINU, AGED ABOUT 28 YEARS, R/O
DR.NO. 5-119, RAGHAVENDRAANAGAR, BOMMURU, INDUSTRIAL
ESTATE, RAGHAVENDRAANAGAR RURAL, EAST GODAVARI
DISTRICT

...PETITIONER

AND

1. THUTTA SURESH BABU, S/o Late Rambabu Aged about 26 years,
R/o Dr.No. 27-08-208/1, Srinagar Near Manna School, Gajuwaka,
Visakhapatnam District

...RESPONDENT

Petition Under Section 24 of the C.P.C. Praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to Pleased to allow this petition and pass appropriate order/s to withdraw the restitution petition (i.e) F.C.O.P.No.2079 of 2024 pending before in the Court of the Honble Additional Family Court Judge, at Visakhapatnam, Visakhapatnam District and transfer the same to the Family Court cum IXth Additional District and Sessions Court, Rajamahendravaram or any other court at Rajamahendravaram and pass

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to prayer before this Hon'ble court to order stay of all further proceedings in the 'restitution petition' (i.e.) F.C.O.P.No.2079 of 2024 pending before in the Court of the Hon'ble Additional Family Court Judge, at Visakhapatnam, Visakhapatnam District pending disposal of this petition and

pass

Counsel for the Petitioner:

1. M S R SASHI BHUSHAN

Counsel for the Respondent:

1.

The Court made the following:

ORDER:

Today, when the matter has been taken up for hearing, learned counsel for the petitioner has submitted that, proof of service Memo has been filed before the Registry on 26.09.2025 vide U.S.R.No.111398 of 2025, along with the Postal Track Consignment Sheet downloaded from the Postal Department Website and the same is placed on the record. As per the Postal Track Consignment Sheet, the registered notice sent to the respondent and the same was served on him on 01.09.2025. Despite service of notice, there is no representation on behalf of respondent. Therefore, 'service held sufficient'.

2. The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for short 'the C.P.C.') seeking for withdrawal of F.C.O.P.No.2079 of 2024 on the file of the Additional Family Court Judge, at Visakhapatnam and transfer the same to the Family Court-cum-IX Additional District and Sessions Court, Rajamahendravaram, or any other Court at Rajamahendravaram, for trial and disposal of the same.

3. The case of the petitioner in brief is as follows:

I. The petitioner is legally wedded wife of the respondent/husband and their marriage was performed on 04.12.2022, in the presence of both side elders and well wishers in the respondent's house at Visakhapatnam, as per the Hindu Rites and Caste Customs and in view of the matrimonial disputes between both the spouses; the petitioner/wife has been residing separately and depending upon the mercy of her parents at Bommuru Village, Raghavendranagar Rural, East Godavari District. The petitioner/wife herein filed a Domestic Violence Case against the respondent/husband vide D.V.C.No.59 of 2024 on the file of the VI Additional Judge-cum- First Class Magistrate, Rajamahendravaram, East Godavari District, under Sections 12 r/w Section 19(1)(f), 19(8), 20 & 22 of Domestic Violence Act, 2005, the same is pending for adjudication.

II. Learned counsel for the petitioner would further contend that with a view to cause inconvenience and to harass the petitioner/wife, the respondent/husband herein had filed F.C.O.P.No.2079 of 2024 on the file of the Additional Family Court Judge, at Visakhapatnam, under Section 9 of the Hindu Marriage Act, 1955, seeking restitution of conjugal rights and the same is also pending for adjudication.

III. Learned counsel for the petitioner would further contend that the petitioner being a woman, has been residing separately and depending upon the mercy of her parents at Bommuru Village, East Godavari District, the distance between the Bommuru Village and Visakhapatnam is more than 190Kms and it is very difficult for her to travel to attend the restitution case proceedings which was filed by the respondent/husband herein, before the Court at Visakhapatnam without any male assistance and that she was constrained to file the present petition against the respondent/husband, seeking for withdrawal of F.C.O.P.No.2079 of 2024 on the file of the Additional Family Court Judge, at Visakhapatnam and transfer the same to the Family Court-cum-IX Additional District and Sessions Court, Rajamahendravaram, East Godavari District.

4. Heard Sri M.S.R. Sasi Bhushan, learned counsel for the petitioner.

5. Though registered notice sent to the respondent and the same was served on him, none appeared for the respondent. Therefore, 'service held sufficient'.

6. Perused the material available on record.

7. The material on record prima facie goes to shows that, in view of the matrimonial disputes, the petitioner/wife has been residing separately at her parents' house at Bommuru Village, East Godavari District and she has instituted a Domestic Violence Case against the respondent/husband herein vide D.V.C.No.59 of 2024 on the file of the VI Additional Judge-cum-First Class Magistrate, Rajamahendravaram, East Godavari District, the aforesaid case is pending for adjudication before the Court at Rajamahendravaram. The material on record further discloses that the respondent/husband had filed a petition against the petitioner/wife herein vide F.C.O.P.No.2079 of 2024 on the file of the Additional Family Court Judge, at Visakhapatnam, under Section 9 of the Hindu Marriage Act, 1955, seeking restitution of conjugal rights and the same is also pending for adjudication.

8. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha¹ held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

9. On considering the submissions made by the learned counsel for the petitioner and in view of the ratio laid down in the aforesaid case law that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the request made by the

petitioner/wife, seeking for withdrawal of F.C.O.P.No.2079 of 2024 on the file of the Additional Family Court Judge, at Visakhapatnam and transfer the same to the Judge, Family Court, Rajamahendravaram, East Godavari District.

10. In the result, the present Transfer Civil Miscellaneous Petition is allowed and the F.C.O.P.No.2079 of 2024 on the file of the Additional Family Court Judge, at Visakhapatnam, is hereby withdrawn and transferred to the Judge, 2022 LiveLaw (SC) 627 Family Court, Rajamahendravaram, East Godavari District. The learned Additional Family Court Judge at Visakhapatnam, shall transmit the case record in F.C.O.P.No.2079 of 2024, to the Judge, Family Court, Rajamahendravaram, East Godavari District, duly indexed as expeditiously as possible, preferably within a period of two (02) weeks from the date of receipt of a copy of this order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim Order granted earlier, if any, shall stand closed.

----- JUSTICE V. GOPALA KRISHNA RAO Date:
08.10.2025 CVD